

OF THE FORMALITIES REQUIRED FOR THE CREATION OF TRUSTS.

UPON this subject we propose to treat — First, Of Declarations of Trust at common law. Secondly, Of the Statute of Frauds. Thirdly, Of the Statutes of Wills.

SECTION I.

OF TRUSTS AT COMMON LAW.

1. **Trusts averrable.** — Trusts, like uses, are of their own nature *averrable*, *i.e.*, may be declared by word of mouth without writing (*a*); as, if before the Statute of Frauds an estate had been conveyed unto and to the use of A. and his heirs, a trust might have been raised by parol in favour of B. (*b*), and since the statute, though a trust of lands cannot be declared by parol without proof of it in writing, no other proof is requisite than a simple note in writing duly signed, but not under seal (*c*).¹

2. **Averment must not contradict the instrument.** — But the Court, following the analogy of uses, never permitted the averment of a trust in contradiction to any expression of intention on the face of the instrument itself (*d*).

(*a*) See *Fordyce v. Willis*, 3 B. C. C. 587; *Benbow v. Townsend*, 1 M. & K. 506; *Bayley v. Boulcott*, 4 Russ. 347; *Crabb v. Crabb*, 1 M. & K. 511; *Kilpin v. Kilpin*, Id. 520.

(*b*) See *Bellasis v. Compton*, 2 Vern. 294; *Fordyce v. Willis*, 3 B. C. C. 587; *Thrupton v. Attorney-General*, 1 Vern. 341.

(*c*) *Adlington v. Cann*, 3 Atk. 151, *per* Lord Hardwicke; *Boson v. Stat-ham*, 1 Eden. 513, *per* Lord Keeper Henley.

(*d*) *Lewis v. Lewis*, 2 Ch. Rep. 77; *Finch's case*, 4 Inst. 86; *Fordyce v. Willis*, 3 B. C. C. 587; see *Childers v. Childers*, 3 K. & J. 310; 1 De G. & J. 482.

¹ This question has only a theoretical value in America, as the Statute of Frauds has been very generally adopted; see the statutes of the various states.